

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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Docket No.: 14-16

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**BALTIC AUTO SHIPPING, INC.,**

*Complainant,*

– vs. –

**MICHAEL HITRINOV  
a/k/a MICHAEL KHITRINOV,  
EMPIRE UNITED LINES CO., INC.,**

*Respondents.*

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**COMPLAINANT’S BRIEF IN OPPOSITION TO THE MOTION BY  
RESPONDENTS TO AMEND THE BRIEFING SCHEDULES ON PENDING MOTIONS**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainant, through its Counsel, Marcus A. Nussbaum, Esq. respectfully submits this brief in opposition to the motion by respondents which seeks to amend the briefing schedules for the various motions currently before the Commission.

As the Commission may recall, there are four separate motions currently being briefed before the Commission:

1. The respondents’ Motion for Partial Summary Decision (Complainant’s opposition due May 8, 2015 and Respondents’ reply due May 18, 2015);
2. The complainant’s Motion to Amend the Complaint (respondent’s opposition due May 4, 2015);
3. The complainant’s Motion for Reconsideration (respondent’s opposition due May 7, 2015); and

4. The Motion by Jon Werner, Esq. and Lyons & Flood LLP for Leave to Intervene and Obtain an Extension of Time to Oppose Complainant's Motion to Amend the Complaint (complainant's opposition due May 14, 2015).

As stated by respondents' counsel, the undersigned has consented to extend respondents' time to reply to the Motion for Partial Summary Decision (Motion #1 above) to May 26, 2015. This brief in opposition is therefore directed towards counsel's arguments seeking an extension of time for the remaining three motions.

As the Commission may recall, the complainant filed a motion to amend the complaint to add Jon Werner, Esq. and Lyons & Flood LLP as respondents to the instant action (Motion #2). That motion contains a detailed procedural history and discusses the various acts which complainant alleges that Mr. Werner and his firm committed in violation of 46 U.S.C. §41104(3) (retaliation under the Shipping Act of 1984 because the complainant has filed a complaint with the Commission). This is the same motion for which Mr. Werner and respondents' counsel, Mr. Doyle, now both seek an extension of time to file a response (to May 18, 2015). As explained in the motion to amend the complaint, Mr. Werner represents the respondents in two separate federal actions in which complainant is being sued by the respondents (in the Eastern District of New York, and the District of New Jersey).

The undersigned represents the complainant in both of those Federal actions, and there is currently a settlement conference scheduled for the District of New Jersey action on May 15, 2015. The undersigned was recently contacted by Mr. Werner regarding the rescheduling of a motion for sanctions against the undersigned and the complainant, and during that discussion, he also explained that could not consent to adjourn the settlement conference of May 15, 2015, stating that the respondent: "***has also arranged in advance to keep May 15 free***, since he knows that his in-person attendance will be required. ***He will be away on holiday from late May to mid-June*** so

June 15 will not work for him either.” A copy of that correspondence is annexed hereto as **Exhibit “A”**, which was also forwarded by Mr. Werner to Hon. Claire C. Cecchi of the District of New Jersey, as part of Mr. Werner’s request to adjourn the motion for sanctions against the undersigned and the complainant.

Curiously enough, in paragraph “2” of the respondents’ instant motion to once again amend the briefing schedules, Mr. Doyle now advises the Commission that: “Respondent Hitrinov...will be **unavailable for the period May 8-18, 2015**, and thus not available to cooperate, advise and review Respondents’ Reply papers now due May 18, 2015...” Mr. Doyle also advises, on paragraph “3” of respondents’ motion that: “In view of the press of litigation (*i.e.*, the two Motions discussed above), Respondents’ will not be able to turn to Complainant’s Motion for Reconsideration until the other Motions have been filed and served. Accordingly, Respondents respectfully request and move for an **extension of time to June 3, 2015** for the filing and serving of the Respondents’ opposition papers.”

In light of the foregoing, either Mr. Werner is misleading a Federal Judge, or Mr. Doyle is misleading the Commission, or both. In either case, this is simply another example of the gamesmanship and abuse of the judicial system that is set forth in detail in the complainant’s motion to amend the complaint. In either case, no extensions should be granted for Mr. Werner, nor should they be granted for Mr. Doyle (with the sole exception being the motion for partial summary decision). Mr. Doyle’s proffered justification for the requested relief in paragraph “3” of his motion as “the press of litigation” is unavailing. The undersigned is a solo practitioner, and both Mr. Doyle and Mr. Werner are members of law firms with multiple attorneys. – This is significant in that the motion to amend the complaint explains that from day one of this litigation, there has been a coordinated effort between Mr. Doyle and Mr. Werner to overpower and

overburden the complainant and the undersigned with frivolous lawsuits and motions, with the expectation that complainant would be discouraged from proceeding forward with this action before the Commission.

Notwithstanding the foregoing, the respondents previously found it appropriate to vigorously object to complainant's second motion for an extension of time to file the opposition to Motion #1 above, for which *they* now seek an extension. – This is simply another example of the same tired game. In addition, a cursory review of Mr. Werner's motion to intervene reveals that the motion is futile and will not likely be granted as it fails to meet the Commission's standard for intervention. That issue will be discussed in detail in the complainant's opposition to Motion #4 above. Furthermore, with regard to the motion for reconsideration (Motion #3 above), that motion explains that the respondents misled the Commission by providing incomplete documentation to the Commission, and as a result should be sanctioned.<sup>1</sup> That motion also addresses old facts from 2011 that are well known to the respondents, thus, there is simply no justification for seeking an extension of time.

### **CONCLUSION**

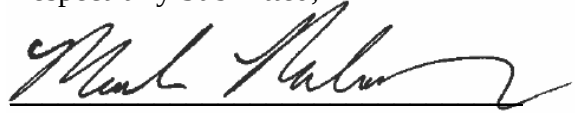
In light of the foregoing, with the sole exception of Motion #1 above, there is no good cause for respondents' request, no extensions of time should be granted, and complainant respectfully requests that the Commission deny respondents' motion accordingly.

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<sup>1</sup> That motion also explains that this is not the first time that these respondents have attempted to engage in fraud. As the Commission may recall, on August 1, 2002, the Federal Maritime Commission published an Order of Investigation and Hearing (in FMC Docket 02-11) alleging that Empire knowingly and willfully violated section 10(b)(1) of the Shipping Act Act and section 10(b)(2)(a) of the Shipping Act by: (1) charging an amount of compensation for the transportation of property which differed from the rates and charges set forth in its published tariff; and (2) that Empire violated Commission regulation 46 C.F.R. § 515.31(e), by knowingly and willfully providing false information to several ocean common carriers in connection with Empire's shipments. The Order of Investigation also resulted in formal notification published in the Federal Register under 67 FR 53353 (2002).

Dated: May 1, 2015  
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224  
Tel: 888-426-4370  
Fax: 347-572-0439  
Attorney for Complainant  
marcus.nussbaum@gmail.com

**CERTIFICATE OF SERVICE**

I hereby certify that I have this day served the **COMPLAINANT'S BRIEF IN OPPOSITION TO THE MOTION BY RESPONDENTS TO AMEND THE BRIEFING SCHEDULES ON PENDING MOTIONS** upon:

Respondents' Counsel, The Law Office of Doyle & Doyle, with the address of 636 Morris Turnpike, Short Hills, NJ 07078; and upon:

**Lyons & Flood**

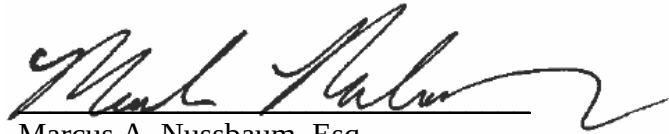
**Attn: Jon Werner, Esq.**

One Exchange Plaza

55 Broadway, Suite 1501

New York, NY 10006

by first class mail, postage prepaid, and by email ([gdoyle@doyelaw.net](mailto:gdoyle@doyelaw.net)) (jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

Attorney for Complainant

[marcus.nussbaum@gmail.com](mailto:marcus.nussbaum@gmail.com)

Dated: May 1, 2015 in Brooklyn, New York.

# **Exhibit “A”**



*Attorneys At Law*

JON WERNER  
E-Mail: [jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)

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April 27, 2015

**VIA CM/ECF**

The Honorable Claire C. Cecchi  
United States District Judge  
United States District Court  
District of New Jersey  
50 Walnut Street  
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*  
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)  
Our File No.: 2697002

Dear Judge Cecchi,

I represent the plaintiffs Empire United Lines Co., Inc. and Michael Hitrinov in the above captioned case and write pursuant to Local Civil Rule 7.1(d) to respectfully request that the return date for plaintiffs' motion for sanctions (Document No. 21) which is currently returnable on May 4, 2015, be adjourned to June 1, 2015.

The adjournment is requested because plaintiffs need more time to prepare their reply papers in further support of the motion, and moreover, because plaintiffs believe that the efficient administration of justice would be better served by adjourning the motion return date until after the in-person status and settlement conference set for May 15, 2015 at 10:00 a.m. before Magistrate Judge Falk has been conducted.

The reasons plaintiffs require more time to prepare their reply papers are that:

- (1) Defendants filed their opposition papers one day late (on April 21 instead of April 20);
- (2) I was in London and Geneva all of last week on another matter, with only limited internet access, and just returned to the office today;
- (3) Defendants, in their opposition papers, indicated that by close of business today (April 27) they would be submitting a courtesy copy of their papers filed with the FMC in opposition to a motion for partial summary judgment, as well as some "documentary evidence", and would be asking this Court to review those papers and "*sua sponte* sanction Mr. Werner and his law firm...." (see Document 24 at pp. 13-14); and

NEW YORK

NEW JERSEY

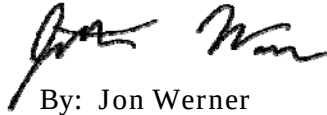
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- (4) Despite the above representations, by close of business today no such filings were made by Defendants. Plaintiffs respectfully submit that they should have the opportunity in their reply papers to address any further briefings which the Defendants intend to submit.

When I contacted counsel for the defendants to ascertain his position with respect to this request, he used this request as an opportunity to bargain for my consent to a one month adjournment of the May 15 settlement conference. When I explained that his proposal to adjourn the settlement conference until June 15 did not work for me or my client, and asked him to advise whether he would consent to this request to adjourn the motion independently from the schedule for the settlement conference, he explained that he "can only consent to a return date prior to the date of the settlement conference." A copy of the relevant email correspondence is enclosed for Your Honor's ease of reference.

Respectfully yours,

**Lyons & Flood, LLP**



By: Jon Werner

Encl.

**VIA EMAIL**

cc: Marcus Aurelius Nussbaum, Esq.  
*Attorney for Defendants*  
P.O. BOX 7042  
New York, NY 10116

**marcus.nussbaum@gmail.com**

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**From:** Jon Werner <jwerner@lyons-flood.com>  
**Sent:** Monday, April 27, 2015 5:30 PM  
**To:** 'Marcus A. Nussbaum'  
**Subject:** RE: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr. Nussbaum,

Thank you for your response. I will be writing the Court shortly to request the adjournment and will represent that your clients do not consent to the request.

Please let me know whether Mr. Presniakovas will need an interpreter to be present for the settlement conference on May 15.

Regards,

**Jon  
Werner**  
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10006  
Tel: (212) 594-  
2400  
Fax: (212) 594-  
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**From:** Marcus A. Nussbaum [<mailto:marcus.nussbaum@gmail.com>]  
**Sent:** Monday, April 27, 2015 3:22 PM  
**To:** 'Jon Werner'  
**Subject:** RE: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr. Werner,

If your client is unavailable in mid-June, then let me know when he would be available for a settlement conference subsequent to that time. With respect to adjourning the motion for sanctions, I can only consent to a return date prior to the date of the settlement conference. To the extent that the court will have to expend time on the motion, I remind you that it was your client's decision to make that motion.

In light of the fact that I had to expend time on opposing the motion for sanctions, my client wants it to be heard by the court because we believe that there is no good basis for that motion having been filed in the first place. If the court denies the motion, my client wants to be compensated accordingly for the fees expended in opposing that motion.

Please consult with your client and let me know when he would be available for a settlement conference between late June and mid-July or subsequent thereto, and then we can agree on a return date for the motion for sanctions.

**\*\*\* Please note that my mailing address has changed \*\*\***

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**From:** Jon Werner [<mailto:jwerner@lyons-flood.com>]  
**Sent:** Monday, April 27, 2015 2:41 PM  
**To:** 'Marcus Nussbaum'  
**Subject:** RE: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr. Nussbaum,

That would seem to defeat one of the purposes of requesting that the return date for the motion be adjourned until after the settlement conference, which is to avoid the Court and the parties having to expend further time on the motion until after that conference.

In any event, I am unavailable on June 15 (I will be in Sweden all that week on another matter). My client has also arranged in advance to keep May 15 free, since he knows that his in-person attendance will be required. He will be away on holiday from late May to mid-June so June 15 will not work for him either. Is there a problem with your client's attendance on May 15? Along those lines, will arrangements need to be made for an interpreter for your client?

Separately from the question of asking for an adjournment of the settlement conference, please advise whether you will consent to the application to adjourn the motion return date to June 1.

Regards,

**Jon  
Werner**

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**From:** Marcus Nussbaum [<mailto:marcus.nussbaum@gmail.com>]

**Sent:** Monday, April 27, 2015 2:24 PM

**To:** Jon Werner

**Subject:** Re: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr. Werner, in light of your request, would you agree to adjourn the settlement conference to June 15th?

On Apr 27, 2015 2:09 PM, "Jon Werner" <[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)> wrote:

Mr. Nussbaum,

I was in Europe all of last week and will be back in Europe all of next week as well. By my reckoning the deadline to file reply papers in connection with the motion for sanctions is close of business today because the current return date of the motion is May 4, 2015.

In light of my travel schedule as well as the upcoming in-person settlement conference on May 15, I would like to request that the Court adjourn the return date for the sanctions motion until June 1.

Please advise whether you will consent to this request.

Regards,

**Jon  
Werner**

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